

Pradeep Singh v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 18 May 2026 · Writ - C No. 15707 of 2026 · **Listed 10 July 2026 as fresh; 28 March 2026 demand stayed till next date**

HEADNOTE

On a writ to quash a reduced assessment after energisation without a meter and a subsequent theft FIR, the Division Bench listed the petition as fresh for 10 July 2026, directed the licensee to explain in writing why a connection was given without installing a meter (including seal/live-wire and laying wire without a meter), and stayed the Executive Engineer's demand dated 28 March 2026 till the next date. Maintainability under the U.P. Electricity Supply Code, 2005, and the theft versus unmetered-connection controversy were not decided.

FACTUAL SUMMARY

Pradeep Singh applied for a connection on 4 September 2024, tendered fees and completed formalities. Supply was given without a meter. On 13 September 2024 enforcement alleged theft and an FIR was registered; a meter was installed the next day. The licensee raised a large bill, later reduced after an earlier writ. He now challenges the Executive Engineer's 28 March 2026 order raising that reduced demand. The licensee says no connection was given and the petitioner joined the wires.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::procedural-listing

Listing; written explanation of unmetered energisation; interim stay of reduced demand

HOLDING

Listed 10 July 2026 as fresh. The licensee is to issue a written explanation of why the connection was given without installing a meter, including whether the seal was tampered to join wires or why a live wire was left unsealed with no meter, and why the wire was laid without installing a meter. The impugned demand dated 28 March 2026 remains stayed till the next date of hearing. No clause of the Supply Code was construed. ¶ 3-4

FLAG Listing/interlocutory only. The Supply Code was invoked solely as a maintainability objection (dispute under the Code); no clause applied.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE WRIT IS MAINTAINABLE BECAUSE THE CONSUMER CAN RAISE A DISPUTE UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised by licensee's counsel; not decided. ¶ 2

NOT DECIDED — WHETHER A CONNECTION WAS GIVEN WITHOUT INSTALLING A METER, OR THE PETITIONER JOINED THE WIRES (THEFT)

Petitioner says supply was given unmetered after fees and formalities; licensee says no connection was given. Court asked for a written explanation; no finding. ¶ 1, 3

NOT DECIDED — WHETHER THE REDUCED DEMAND DATED 28 MARCH 2026 SHOULD BE QUASHED

The relief sought; only stayed till the next date. ¶ 1, 4

